

motion solely to the Issue of Duty, facts addressing conduct related to whether Pacific Union and/or Dan Joy met or breached the duty raise questions as to whether Plaintiffs are seeking a determination beyond the existence or nonexistence of a duty owed by Pacific Union to them under Civil Code § 1088(b).

Denial Without Prejudice

The Court denies the motion based on the procedural deficiencies set forth. The Court in its discretion denies the motion without prejudice, such that if Plaintiffs desire, they can refile the motion to correct the procedural issues as the Court does not reach the merits of any issue of duty by this ruling.

Evidentiary Issues and Evidentiary Objections

Given the Court's ruling on the motion, the Court does not address the parties' requests for judicial notice as not material to the ruling. Under Code of Civil Procedure § 437c(q), the Court only needs to rule on evidentiary objections material to the Court's ruling. Given the Court's ruling, the Court does not rule on the evidentiary objections to defendant's evidence. Counsel for Pacific Union is also advised that, although Pacific Union's response to UMF Nos. 14 and 15 refer the Court to "Evidentiary Objections to Declaration of Adam Bailey," the Court's Odyssey system does not include any such objections, nor did Pacific Union's proof of service of its opposition papers filed on January 27, 2026 list any such evidentiary objections.

14. 9:00 AM CASE NUMBER: MSC21-00650
CASE NAME: MARIA SALVADOR VS. GULF HARBOUR INVESTMENTS CORPORATION
***HEARING ON MOTION IN RE: ATTORNEY'S FEES**
FILED BY: HERITAGE BANK OF COMMERCE
TENTATIVE RULING

The matter is stayed pursuant to the notice of bankruptcy filed 3/18/25.

Hearing on Defendant's post-judgment motion for attorneys' fees (originally filed January 24, 2025) is continued to August 21, 2026 at 9:00 a.m. in Department 32.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-02962
CASE NAME: FRANK GALLAGHER VS. SIMON DE GIULI BOTTA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO INTERROGATORIES**
FILED BY: GALLAGHER, FRANK
TENTATIVE RULING:

Plaintiff Frank Gallagher (Plaintiff or Gallagher) brings the instant motion to compel further responses to Form Interrogatories and further responses to a Request for Production of Documents from